

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

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BRANDON WOODS,

Plaintiff,

Index No.:

-against-

SUMMONS

THE NEW YORK CITY POLICE DEPARTMENT, THE
CITY OF NEW YORK, POLICE OFFICER. JEFFREY
DESHOMMES, SHIELD # 28505, A POLICE OFFICER
WITH THE NEW YORK CITY POLICE DEPARTMENT
OF COMMAND 073 AND "JOHN DOE", FULL NAME
UNKNOWN, BUT BELIEVED TO BE A POLICE OFFICER
EMPLOYED BY THE CITY OF NEW YORK AND THE
NEW YORK CITY POLICE DEPARTMENT IN HIS
OFFICIAL AND INDIVIDUAL CAPACITY,

Plaintiff designates
Kings County as the
place of trial.

The basis of venue is
County of Occurrence

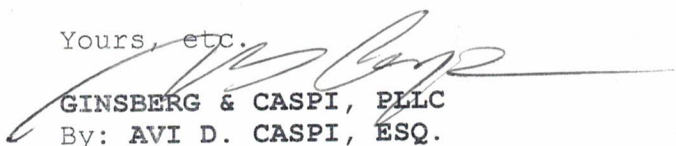
Defendants

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TO THE ABOVE NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to appear and answer the complaint in
their action and to serve a copy of your answer, or, if the complaint
is not served with the summons, to serve a notice of appearance, on
the Plaintiff's attorney(s) within 20 days after the service of the
summons, exclusive of the day of service (or within 30 days after the
service is complete if the summons is not personally delivered to you
within the State of New York); and in case of your failure to appear
or answer, judgment will be taken against you by default for the
relief demanded herein.

Dated: Mineola, NY
June 15, 2017

Yours, etc.


GINSBERG & CASPI, PLLC

By: AVI D. CASPI, ESQ.

Attorneys for Plaintiff

100 Herricks Road, Suite 205B
Mineola, NY 11501

Defendant's address:

Corporation Counsel of the City of New York
Attorneys for The City of New York and
The New York City Police Department
100 Church Street, 4th Floor
New York, New York 10007

P.O. JEFFREY DESHOMMES
c/o NYPD
1 Police Plaza
New York NY 10007

P.O. JOHN/JANE DOE
c/o NYPD
1 Police Plaza
New York NY 10007

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

BRANDON WOODS,

Plaintiff,

-against-

THE NEW YORK CITY POLICE DEPARTMENT, THE
CITY OF NEW YORK, POLICE OFFICER. JEFFREY
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Defendants.

Filed: _____

INDEX NO.

Plaintiff
designates Kings
County as the place
of trial.

VERIFIED COMPLAINT

The basis of venue
is
County of
Occurrence

Plaintiff, BRANDON WOODS, by his attorneys, GINSBERG & CASPI,
PLLC, complaining of Defendants, allege, upon information and belief,
as follows:

1. At all times hereinafter mentioned, Defendant, THE CITY OF NEW YORK (hereinafter referred to as "CITY"), was and is a municipal corporation duly existing under the laws of the State of New York.
2. THE CITY OF NEW YORK has established and maintains a Department of Police as a constituent department or agency of the Defendant.
3. At all times hereinafter mentioned, Defendant, POLICE OFFICER, JEFFREY DESHOMMES, (hereinafter referred to as "DESHOMMES"), with Shield #: 28505, was a police officer with the Police Department of The City of New York, of Command 073.
4. At all times hereinafter mentioned Defendant, CITY, employed DESHOMMES and other police officers.

5. At all times hereinafter mentioned, Defendant, DESHOMMES, was acting within the scope of his employment as a police officer with the Police Department of The City of New York.
6. At all times hereinafter mentioned, Defendant, DESHOMMES, was acting under color of law and authority as a police officer with the Police Department of The City of New York.
7. On August 13, 2016, the individual Defendant, DESHOMMES, was on duty and assigned to the Command 073, Shield Number: 28505.
8. At all times hereinafter mentioned, Defendant, DESHOMMES, was acting within the scope of his employment as a police officer with the Police Department of The City of New York.
9. At all times hereinafter mentioned Defendant, CITY, employed LUCAS and other police officers.
10. At all times hereinafter mentioned, Defendant, DESHOMMES, was acting within the scope of his employment as a police officer with the Police Department of The City of New York.
11. At all times hereinafter mentioned, Defendant, "JOHN DOE", full name unknown but believed to be a police officer employed by The City of New York and The New York City Police Department in his official and individual capacity, was a police officer with the Police Department of The City of New York.
12. At all times hereinafter mentioned Defendant, CITY, employed Defendant, "JOHN DOE", as a police officer.
13. At all times hereinafter mentioned, Defendant, "JOHN DOE NO" was acting within the scope of his employment as a police officer with the Police Department of The City of New York.

14. At all times hereinafter mentioned, Defendant "JOHN DOE", was acting under color of law and authority as police officers with the Police Department of The City of New York.

15. On August 13, 2016, the individual Defendant, "JOHN DOE", was on duty and assigned to the 073 Command, Shield Number unknown at this time.

16. At all relevant times, the individual Defendants were acting pursuant to their authority as NEW YORK CITY POLICE DEPARTMENT employees. Notwithstanding their unconstitutional and unlawful conduct, the actions of the individual Defendants were taken in the course of their duties and were incidental to their otherwise lawful function as agents, servants and employees of the NEW YORK CITY POLICE DEPARTMENT.

17. Plaintiff, BRANDON WOODS, is a resident of the County of Kings, City and State of New York.

18. Plaintiff, BRANDON WOODS, duly served a Notice of Claim upon The City of New York in the manner and mode required by law.

19. That a hearing has been held pursuant to Section 50(h) of the General Municipal Law on the 1st day of February, 2017, at which time Plaintiff appeared and gave testimony in connection with the facts underlying this claim.

20. That thirty days have elapsed since the service of said Notice of Claim and Plaintiff's claims have not been adjusted or paid.

21. That this action is brought within one year and ninety days from the date of occurrence complained of herein and that Plaintiff has

complied with all conditions precedent applicable to the instant action.

22. Defendants violated Plaintiff's civil rights, including the First, Fourth, Fifth and Fourteenth Amendments to the United States Constitution and 42 U.S.C. Section 1981 and 1983.

FIRST CAUSE OF ACTION

23. Plaintiff, BRANDON WOODS, repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "22", with the same force and effect as if fully set forth herein.

24. On August 13, 2016, at approximately 2:00 P.M., inside the premises known as 51 Junius Street, in Brooklyn, New York, Plaintiff was stopped, questioned and taken into custody by Defendants, POLICE OFFICERS DESHOMMES and "JOHN DOE", of Command 073.

25. Plaintiff, BRANDON WOODS, while in custody and being led down a stairwell in the aforesaid premises, by Defendant, POLICE OFFICERS, DESHOMMES and "JOHN DOE", of Command 073, the Defendants, caused the Plaintiff to trip and fall down the stairs, thereby sustaining serious and permanent injuries.

26. This incident resulted in severe personal and permanent injuries and damages to said Plaintiff as set forth herein below as a result of the negligent, careless, and reckless conduct of the CITY OF NEW YORK, POLICE OFFICERS, DESHOMMES and "JOHN DOE", of Command 073, THE NEW

YORK CITY POLICE DEPARTMENT, its agents, servants, licensees, employees and other affiliate agencies and departments, and those acting under its direction, behest, permission and control as set forth above and in the general operation, supervision, governance, and maintenance of the NEW YORK CITY POLICE DEPARTMENT, including, but not limited to the following acts and omissions: failure to properly supervise, failure to properly screen and hire, failure to discipline, train and retrain, failure to maintain an effective system of discipline and retraining for police officers, negligent hiring and retention, negligent supervision and training.

27. As a result of the foregoing, Plaintiff, BRANDON WOODS, demands judgment against Defendants, THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT, POLICE OFFICER DESHOMMES and "JOHN DOE", full name unknown but believed to be a police officer employed by The City of New York and The New York City Police Department, of Command 073, in their official and individual capacity, in a sum of money which exceeds the jurisdictional limits of all courts of lesser jurisdiction.

SECOND CAUSE OF ACTION

28. Plaintiff, BRANDON WOODS, repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "27", with the same force and effect as if fully set forth herein.

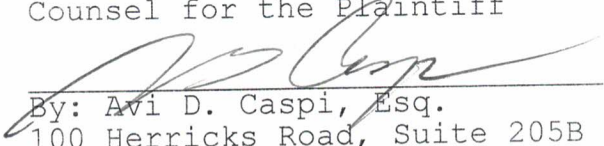
29. On August 13, 2016, at approximately 2:00 P.M., at the aforesaid location, Plaintiff, BRANDON WOODS, while being

escorted down the stairwell ,the plaintiff was physically touched and assaulted by Defendants, POLICE OFFICER DESHOMMES and "JOHN DOE", thereby causing the plaintiff to lose his balance, trip and fall down the stairs and to suffer serious and permanent injuries.

WHEREFORE, Plaintiff, BRANDON WOODS respectfully demands judgment against Defendants THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT, POLICE OFFICERS, DESHOMMES and "JOHN DOE", of Command 073, full name unknown but believed to be a police officers employed by The City of New York and The New York City Police Department in their official and individual capacity on both the first and second causes of action and requests the following relief: compensatory damages in a sum of money which exceeds the jurisdictional limits of all courts of lesser jurisdiction; an award of reasonable attorney's fee, costs and disbursements of this action; such other and further relief as this Court may deem just, fair and proper under the circumstances.

Dated: Mineola, New York
June 15, 2017

Respectfully submitted,
GINSBERG & CASPI, PLLC
Counsel for the Plaintiff


By: Avi D. Caspi, Esq.
100 Herricks Road, Suite 205B
Mineola, New York 11501
(516) 742-7747

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

BRANDON WOODS,

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Plaintiff,

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**ATTORNEY'S
VERIFICATION**

THE NEW YORK CITY POLICE DEPARTMENT, THE
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DESHOMMES, SHIELD # 28505, A POLICE OFFICER
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EMPLOYED BY THE CITY OF NEW YORK AND THE
NEW YORK CITY POLICE DEPARTMENT IN HIS
OFFICIAL AND INDIVIDUAL CAPACITY,

Defendants.

Avi D. Caspi, an attorney duly admitted to practice law in the
State of New York, makes the following affirmation under the penalty
of perjury:

I am a member of GINSBERG & CASPI, PLLC, the attorneys of record
for the plaintiff.

I have read the foregoing Complaint and know the contents
thereof; the same is true to my own knowledge except as to the matters
therein stated to be alleged on information and belief and that as
to those matters, I believe them to be true.

This verification is made by affirmant and not by plaintiff
because he is not in the County of Nassau, which is the County where
your affirmant maintains offices.

The grounds of affirmant's belief as to all matters not stated
upon affirmant's knowledge are correspondence had with the said
plaintiff, information contained in the said plaintiff's file, which
is in affirmant's possession, and other pertinent data relating
thereto.

Dated: Mineola, New York
June 15, 2017


AVI D. CASPI

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SUMMONS and VERIFIED COMPLAINT

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GINSBERG & CASPI, PLLC
Attorneys for Plaintiff
100 Herricks Road - Suite 205B
Mineola, New York 11501
(516) 742-7747

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To:

Corporation Counsel of the City of New York
Attorneys for The City of New York and
The New York City Police Department
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